

2014 WL 6383754 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Timmy WALLACE, Plaintiff,

v.

THE CITY OF NEW YORK, Detective **Abdiel Anderson**, Shield No. 001429, Sergeant Sean J. Lynch, Shield No. 4339, Police Officer Smith, Police Officer Gines, Shield No. 003600 and Police Officers John Does #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department, Defendants.

No. 0025261.
November 7, 2014.

Summons

Jacobs & Hazan, LLP. [Stuart E. Jacobs](#), Esq., 11 Park Place, 10th Floor, New York, New York 10007, (212) 577-2690, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York November 7, 2014

JURY TRIAL DEMANDED

VERIFIED COMPLAINT

Plaintiff TIMMY WALLACE, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs rights as secured by the Civil Rights Act, [42 U.S.C. Section 1983](#), and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 9, 2013, at approximately 2:00 p.m., plaintiff Timmy Wallace, while lawfully walking in the vicinity of East 180st Street and Southern Boulevard, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, false imprisonment, assault, and battery by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched,

confined, arrested, assaulted and battered plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff TIMMY WALLACE is a resident of the state of New York.
3. DETECTIVE **ABDIEL ANDERSON**, Shield No. 001429, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. DETECTIVE **ABDIEL ANDERSON**, Shield No. 001429, is and was at all times relevant herein, assigned to Narcotics Bronx Borough.
5. DETECTIVE **ABDIEL ANDERSON**, Shield No. 001429 is being sued in his individual and official capacity.
6. SERGEANT SEAN J. LYNCH, Shield No. 4339, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT SEAN J. LYNCH, Shield No. 4339, is and was at all times relevant herein, assigned to Narcotics Bronx Borough.
8. SERGEANT SEAN J. LYNCH, Shield No. 4339 is being sued in his individual and official capacity.
9. POLICE OFFICER SMITH is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. POLICE OFFICER SMITH is and was at all times relevant herein, assigned to Narcotics Bronx Borough.
11. POLICE OFFICER SMITH is being sued in his individual and official capacity.
12. POLICE OFFICER GINES, Shield No. 003600 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. POLICE OFFICER GINES, Shield No. 003600 is and was at all times relevant herein, assigned to Narcotics Bronx Borough.
14. POLICE OFFICER GINES, Shield No. 003600 is being sued in his individual and official capacity.
15. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
16. Police Officers John Does #1-4 are being sued in their individual and official capacities.
17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

20. More than thirty (30) days have elapsed since service of said Notice of Claims were filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

21. This action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On August 9, 2013, at approximately 2:00 p.m., plaintiff was lawfully walking in the vicinity of East 180st Street and Southern Boulevard, Bronx, New York.

24. As plaintiff was lawfully walking, the individually named defendant police officers unlawfully approached and stopped plaintiff, without reasonable suspicion, probable cause, or any legal justification.

25. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

26. The individually named defendant police officers tackled plaintiff to the ground without provocation or legal justification causing plaintiff to suffer serious physical injuries.

27. At no point in time did plaintiff resist the defendant police officers in any way.

28. Thereafter, the defendant police officer then unlawfully frisked plaintiff, touching all areas of his body over his clothing.

29. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff.

30. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

31. Thereafter, plaintiff was transported to the a local police precinct.

32. While at the precinct, the defendant police officers falsely communicated to the Bronx County District Attorney's Office that plaintiff had committed a crime despite knowing that plaintiff had not committed any crime.

33. On or about August 10, 2013, plaintiff was transported to Bronx Central Booking.

34. After approximately 24 hours in custody, plaintiff was arraigned in Bronx Central Booking and bail was set in the amount of \$15,000.

35. Plaintiff was unable to post bail and therefore he was remanded to the custody of the Department of Correction.

36. Thereafter, the Department of Correction transported Plaintiff to the Vernon Bain Center.

37. On or about August 22, 2013, plaintiff was able to post bail and was released from custody.

38. However, as a result of the false arrest and false allegations by the defendant police officers, on or about September 24, 2013 a parole hold was issued against plaintiff and plaintiff was once again incarcerated at the Vernon Bain Center.

39. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, and use of excessive force against plaintiff.

40. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

41. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

42. The unlawful stop, question, frisk, search, false arrest, false imprisonment,, assault, and battery against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, and falsely imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Failure to Intervene

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

51. Defendants failed to intervene to prevent the unlawful conduct described herein.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Stop

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The conduct of defendants in stopping, frisking, searching, assaulting and battering plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Negligence

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants owed a duty of care to plaintiff.

Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, and assaulting and battering plaintiff.

64. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

65. All of the foregoing occurred without any fault or provocation by plaintiff.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Timmy Wallace. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiffs statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

69. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The use of excessive force by defendants in tackling plaintiff, kicking and punching him was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

73. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Assault

74. Plaintiff repeats and realleges paragraphs 1 through 73 as if fully set forth herein.

75. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Battery

78. Plaintiff repeats and realleges paragraphs 1 through 77 as if fully set forth herein.

79. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

84. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

85. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

86. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

88. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

89. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

90. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Timmy Wallace demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to [42 U.S.C. § 1988](#).

Dated: New York, New York November 7, 2014

By:

STUART E. JACOBS DAVID M. HAZAN JACOBS & HAZAN, LLP

Attorneys for Plaintiff

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